REFERRAL AGREEMENT

This Referral Agreement (the "Agreement") is entered into as of November 18, 2024 (the "Effective Date"), by and between KPMG LLP, a Delaware registered limited liability partnership with an office at 345 Park Avenue, New York, New York 10154 ("KPMG" or "Referring Party"), and [redacted] Tax Credits LLC, a Delaware limited liability company having a principal place of business at 26610 Agoura Road, Suite 120, Calabasas, California 91302 ("[redacted]" or "Referred Party").

RECITALS

WHEREAS, KPMG and [redacted] wish to document a referral arrangement pursuant to which Referring Party intends to refer potential clients ("Referred Entities") to [redacted] to facilitate the connection by [redacted] of such Referred Entities with one or more entities interested in selling transferable tax credits ("Tax Credit Sellers") to such Referred Entities.

NOW, THEREFORE, for and in consideration of the premises and the mutual promises hereinafter set forth and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, KPMG and [redacted] agree as follows:

I. Term and Termination

a) This Agreement is effective as of the Effective Date and shall continue for a period of one (1) year ("Term").

b) Either party may terminate this Agreement at any time upon 30 days' prior written notice to the other party for any reason or no reason. The earned fees described herein shall survive this Agreement only for fully executed Eligible Client Agreements (as defined below) between KPMG and Eligible Clients (as defined below), executed within the period of six (6) months after the termination of this Agreement (the "Tail Period").

c) KPMG also may terminate this Agreement immediately upon written notice to [redacted] if it shall determine in its sole discretion that: (i) [redacted] has breached Section IV below, or (ii) its relationship with [redacted] or this Agreement, as it may be amended from time to time, or any portion thereof, causes KPMG to be in violation of the auditor independence laws, regulations, rules or guidelines of the Securities and Exchange Commission, the Public Company Accounting Oversight Board or any other governmental, administrative or self-regulatory body. For the avoidance of doubt, in the event of a termination of this Agreement in accordance with this Section I.c, the Tail Period shall not apply.

II. Scope

a) During the term of this Agreement, subject to the terms and conditions hereof, the Referring Party may refer Referred Entities to [redacted] which KPMG reasonably believes would be eligible and interested in acquiring tax credits, it being understood that any services engagements with KPMG shall be separate and apart from any relationships the Referred Entities may have with [redacted] or any Tax Credit Seller. Notwithstanding anything herein to the contrary, the following Entities will not be deemed Referred Entities for purposes of this Agreement: (i) entities that are existing clients of [redacted] as of the date referred by Referring Party, (ii) entities that were previously referred to [redacted] by other parties, or (iii) entities which are otherwise already in [redacted] sales or business development pipeline, in each case as [redacted] may reasonably document.

b) If Referring Party refers any Referred Entity to [redacted] to be connected with Tax Credit Sellers, [redacted] will, at its sole discretion, provide such Referred Entity with information about the opportunity to acquire tax credits, and if requested by such Referred Entity, [redacted] will seek to facilitate the entry by Referred Entity into an appropriate purchase agreement with a Tax Credit Seller in order for such Referred Entity to acquire transferable tax credits. As between KPMG and

[redacted] [redacted] will have sole responsibility for and control of the negotiations with Referred Entities concerning the specifics of such tax credit transactions.

III. Representations and Warranties

Each party represents and warrants that it will comply with all applicable laws, rules, regulations, and professional standards in connection with the activities contemplated by this Agreement.

Without limiting the foregoing, the Referring Party for itself and on behalf of its directors, officers, partners, principals, employees, affiliates, and agents (collectively the "Referring Group"), covenants, represents, and warrants that it shall be the responsibility of the Referring Party:

a) to ensure that members of the Referring Group do not undertake or perform any action that may necessitate that any member of the Referring Group participating in the activities contemplated by this Agreement obtain registration under applicable securities laws;

b) to ensure that no member of the Referring Group states or infers that it is acting on behalf of [redacted]

c) to ensure that members of the Referring Group do not make any recommendation or otherwise represent to Referred Entities that a specific service is suitable for that Referred Entity or another person or company;

d) to ensure that it is qualified to do business in the geographies in which it will perform its obligations under this Agreement;

e) to disclose to [redacted] if it is aware of any fraud, misconduct, or unlawful action on the part of either the Referring Group or a Referred Entity that might impair or otherwise negatively impact Fallbrook's provision of services and/or reflect negatively on the reputation of the Referring Group, the Referred Entity, or [redacted]

f) to ensure that it will obtain all necessary licenses and permits, and satisfy any other legal, regulatory and administrative requirements necessary to its performance hereunder; and

g) to ensure that members of the Referring Group do not accept any instructions from Referred Entities with respect to the performance of any of Fallbrook's services.

IV. Independence

[redacted] represents, warrants, covenants and agrees as follows:

a) [redacted] has completed a questionnaire providing the information required to be provided by the form attached hereto as Exhibit A hereto and has provided such completed questionnaire (the "Completed Questionnaire") to KPMG. The information set forth in the Completed Questionnaire is complete and accurate as of the date hereof. [redacted] will notify KPMG immediately in writing if at any time the information provided in the Completed Questionnaire is no longer accurate or complete in any respect.

b) Except as set forth in Exhibit A, neither [redacted] nor any of its Beneficial Owners with Significant Influence ("BOWSI" as defined below) is, and without KPMG's prior written approval will at any time during the Term of this Agreement become, a partner, executive officer, or member of the Board of Directors or BOWSI of any for-profit entity (an "Entity"). A "Beneficial Owner with Significant Influence" is an individual or entity that can exert significant influence over the other party, which is represented by 1) 20% or greater ownership of outstanding equity securities, and/or 2) 20% or greater representation of the governing board.

c) [redacted] shall inform KPMG in writing immediately of any violation by [redacted] of the terms of this Section IV. If the term of this Agreement is longer than one year, [redacted] shall confirm the undertakings in subsections IV(a) and (b) above to KPMG in writing on each anniversary of the date of this Agreement during its term, upon KPMG's written request.

d) If [redacted] including [redacted] partners, executive officers or members of its Board of Directors becomes, or any of its Beneficial Owners with Significant Influence becomes, or if [redacted] notifies KPMG that it, including Fallbrook's partners, executive officers or members of its Board of Directors or any of its Beneficial Owners with Significant Influence intend to become, a partner, executive officer or member of the Board of Directors, or a Beneficial Owner with Significant Influence of any for profit entity that is an Audit Client, KPMG shall have the right to terminate this Agreement immediately without further liability or obligation to [redacted]

e) [redacted] shall not hold itself out as a partner or employee of KPMG.

V. Fee Structure; Notices; Invoicing

a) During the Term of this Agreement and the Tail Period, in exchange for Referring Party's referral activities, [redacted] will pay KPMG the Referral Fee (as defined below); provided, however, that (a) pursuant to applicable state and local regulations and professional standards, no fees shall be payable for Referred Entities in California, Hawaii, and Nebraska, and (b) any fees paid for referrals by Referring Party hereunder will be disclosed to Eligible Client(s) by KPMG.

b) Referring Party will only be eligible to receive a Referral Fee (as defined below) in connection with Eligible Clients. "Eligible Client" means a Referred Entity that (a) is referred to [redacted] by Referring Party during the Term, and (b) enters into an agreement with a Tax Credit Seller to acquire transferable tax credits ("Eligible Client Agreement") within six (6) months after Referring Party first makes such referral to [redacted] Notwithstanding anything to the contrary herein, [redacted] shall not owe KPMG a Referral Fee for a tax credit acquisition transaction between an Eligible Client and a Tax Credit Seller if such Eligible Client was involved in such transaction through a third-party and not through a direct or indirect solicitation by [redacted]

c) For each Eligible Client, Referring Party will earn a referral fee (the "Referral Fee") equal to fifty percent (50%) of the placement fees that are payable to [redacted] by the Tax Credit Seller for tax credit acquisition transactions between the Tax Credit Seller and the Eligible Client during the 1-year period commencing on the effective date of the applicable Eligible Client Agreement (the "Referral Fee Period"). In the event that [redacted] does not receive its placement fee from a Tax Credit Seller in connection with such transaction, [redacted] shall not be obligated to pay Referring Party the Referral Fee.

d) Upon Referring Party's request to [redacted] at any time during the Term and Tail Period, [redacted] will provide an update to Referring Party identifying, for each Referred Entity, whether such Referred Entity has become an Eligible Client during the Term. In addition, for each Eligible Client that enters into an agreement with a Tax Credit Seller to acquire transferable tax credits, such notice shall include the date of such purchase agreement, the amount of the tax credits to be acquired by the Eligible Client, and the amount billed or billable by [redacted] to the Tax Credit Seller during the Referral Fee Period in respect of tax credits being acquired.

e) [redacted] will pay the foregoing Referral Fee for each Eligible Client within sixty (60) days following the end of each calendar quarter that overlaps (in part or in whole) with the Referral Fee Period.

f) [redacted] shall keep and maintain accurate records relating to the revenues payable to [redacted] by Tax [redacted] Sellers and the Referral Fees payable to KPMG. Upon reasonable notice and during regular business hours, [redacted] shall make its books and records maintained by it in respect of the amounts payable to it by Tax Credit Sellers available to KPMG (or its designated auditor, which must be a nationally recognized accounting firm) for the purposes of verifying the Referral Fees payable to KPMG and Fallbrook's compliance with this Agreement; provided that KPMG shall be limited to

two (2) audits during the Term. [redacted] shall fully cooperate with KPMG in connection with any such audit. Each Party shall be responsible for any expenses incurred by such Party in connection with any such audit.

g. During the Term and Tail Period,

- [redacted] shall not take any action to circumvent KPMG's right to receive the Referral Fee with respect to any Eligible Client, it being understood that KPMG will not be entitled to receive a Referral Fee if the Eligible Client enters into a transaction with a Tax Credit Seller through a third-party and [redacted] is not entitled to receive a placement fee from the Tax Credit Seller; and
- KPMG shall not enter into a direct agreement with any Tax Credit Seller in respect of any Eligible Client referred to [redacted] or cause any Eligible Client referred to [redacted] to enter into a direct agreement with any Tax Credit Seller to which it is introduced or made aware of by [redacted] such that [redacted] is not entitled to receive a placement fee from the Tax Credit Seller.
- The non-circumvention provisions of this paragraph shall not apply to any transaction involving the acquisition of tax credits if the Eligible Client or Tax Credit Seller, as applicable, was involved in such transaction through a third-party and not through a direct or indirect solicitation by [redacted] or KPMG, as applicable.

VI. Confidentiality

Except as otherwise provided in this Agreement, or with the consent of the other party hereto, each of the parties hereto agrees that all information disclosed to a party in connection with this Agreement, including, without limitation, the terms of this Agreement, business and financial information, client and vendor lists, and pricing and sales information, shall be subject to the terms of that certain Mutual Non-Disclosure Agreement dated as of September 27, 2024 between the Parties.

VII. Limitation of Liability

EXCEPT FOR LIABILITY ARISING OUT OF SECTIONS III., IV., AND VI., NEITHER PARTY WILL BE LIABLE IN CONNECTION WITH THIS AGREEMENT UNDER ANY LEGAL THEORY (WHETHER IN CONTRACT, TORT OR OTHERWISE) FOR ANY INDIRECT, SPECIAL, INCIDENTAL, CONSEQUENTIAL, EXEMPLARY, OR PUNITIVE DAMAGES, OR FOR ANY LOSS OF REVENUES OR PROFITS, EVEN IF SUCH PARTY KNEW OR SHOULD HAVE KNOWN OF THE POSSIBILITY OF SUCH DAMAGES.

VIII. Non-Assignability

Neither Party shall assign, transfer, or subcontract this Agreement or any of its obligations hereunder without the other Party's prior written consent in each instance.

IX. Non-Exclusivity

During the term of this Agreement, KPMG may engage the services of any individual or entity that competes with Referred Party or offers services similar to those offered by Referred Party, and any such engagement shall not be considered a breach of this Agreement. During the term of this Agreement, [redacted] may engage the services of any individual or entity that competes with Referring Party or offers services similar to those offered by Referring Party, and any such engagement shall not be considered a breach of this Agreement.

X. Relationship of Parties

Nothing contained in this Agreement will be deemed or construed as creating a joint venture or partnership between KPMG and Referred Party. Neither party, by virtue of this Agreement, is authorized as an agent, employee, or legal representative of the other. Except as specifically set forth herein, neither party will have the power to control the activities and operations of the other, and the parties' status is, and at all times will continue to be, that of independent contractors. Neither Party will have the right or authority to assume or create any obligations for the other Party, make any representations or warranties on behalf of the other Party, or otherwise bind the other Party. Each party will be responsible for any costs it incurs in connection with its activities under this Agreement.

XI. Severability

In the event that any term or provision of this Agreement shall be held to be invalid, void, or unenforceable, then the remainder of this Agreement shall not be affected, impaired, or invalidated, and each such term and provision of this Agreement shall be valid and enforceable to the fullest extent permitted by law.

XII. Governing Law; Arbitration

This Agreement shall be governed by and construed in accordance with the laws of the State of New York, without regard to the conflict of laws provisions thereof. All disputes arising under this Agreement shall be subject to binding arbitration in accordance with the Rules for Non-Administered Arbitration of the International Institute for Conflict Prevention and Resolution (the "IICPR"). Arbitration shall be conducted in New York, New York, and judgment upon the award rendered by the arbitrators may be entered in any court having jurisdiction thereof.

XIII. Notices

All notices permitted or required under this Agreement shall be in writing and shall be by personal delivery, a nationally recognized overnight courier service or certified or registered mail, return receipt requested. Notices shall be deemed given upon the earlier of actual receipt or one (1) day after deposit with the courier service, or five (5) days after deposit with the U.S. Postal Service. Notices shall be sent to the addresses listed below, or to such other address as either party may specify in writing.

If to KPMG:

KPMG LLP
345 Park Avenue
New York, NY 10154
Attn: Richard Marcos, Tax Partner

With a copy to:

KPMG LLP
345 Park Avenue
New York, New York 10154
Attn: General Counsel

If to [redacted]

[redacted] Tax Credits LLC
Attention: Legal Department
[redacted]

XIV. Survival

Paragraphs V., VI., VII, VIII. and XII. shall survive the expiration or earlier termination of this Agreement by either party for any reason.

XV. Counterparts

This Agreement may be executed in counterparts or duplicate originals. Facsimile and electronic and digital copies of the Agreement, including properly executed PDF versions of the Agreement, are regarded as an original instrument by the parties.

IN WITNESS WHEREOF, the parties hereto have or caused this Agreement to be executed by their duly authorized representatives, as of the Effective Date.

[redacted]	**KPMG LLP**
By_____	By Richard E Marcos
Name _____	Name Richard Marcos
Title_____	Title Principal
Date_____	Date 11/18/2024

EXHIBIT A

THIRD PARTY BUSINESS RELATIONSHIPS QUESTIONNAIRE